

KENYA PRIVACY LAW REVIEW

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CASE DIGEST SERIES

“
Landmark decisions
shaping Kenya's data
protection and digital
rights landscape.”



CASE DIGEST NO.

001

MIND QUEST LIMITED
V
FLORENCE WANJIKU KARIUKI
& OFFICE OF THE
DATA PROTECTION
COMMISSIONER
[2023] KEHC 4823 (KLR)

 High Court of Kenya at Nairobi (Milimani Law Courts)
Judicial Review Division

 6 June 2023

 On appeal from ODPC Complaint No. 137 of 2022

1. CASE INFORMATION

 Case Name	Mind Quest Limited v Florence Wanjiku Kariuki & Office of the Data Protection Commissioner
 Neutral Citation	[2023] KEHC 4823 (KLR)
 Court	High Court of Kenya at Nairobi (Milimani Law Courts) – Judicial Review Division
 Judge(s)	R.E. Aburili, J.
 Date of Decision	6 June 2023
 Case Number	Judicial Review Application E442 of 2022
 Subject Area	Data Protection; Privacy; Defamation; Judicial Review
 Keywords	Credit reporting; unlawful data processing; defamation; right to be forgotten; damage to credit reputation
 Editorial Classification	Data Protection • Privacy • Defamation • Administrative Law

2. EDITORIAL SUMMARY

The Court held that the Respondent's credit report, issued without lawful basis and containing defamatory entries, violated her rights to privacy, dignity and reputation under Articles 31, 28 and 19 of the Constitution and contravened the Data Protection Act, 2019. Mind Quest Limited was found to have failed to ensure accuracy, lawfulness and fairness in processing personal data. The Court issued declarations of violation, ordered rectification, awarded general damages and costs, and affirmed the ODPC's decision.



KEY HOLDING

Unlawful and inaccurate credit reporting infringes constitutional rights and attracts liability, including damages, rectification and corrective measures.



CONSENT



LIKENESS



PURPOSE
LIMITATION



DATA
PROTECTION



ACCURACY &
FAIRNESS



INDIVIDUAL
RIGHTS



EFFECTIVE
REMEDY

“
Protecting personal data.
Upholding dignity.
Strengthening digital trust.”



JUDICIAL
CLARITY



DATA
RIGHTS



DIGITAL
GOVERNANCE



ACCOUNTABLE
INSTITUTIONS

COMPILED AND EDITED BY

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KENYA PRIVACY LAW REVIEW



CASE DIGEST SERIES

By *Patrick Muchangi*

VOLUME I

Consolidated Master Edition — Parts I–IV Complete

EDITOR'S NOTE ON THIS EDITION

*This edition consolidates three working drafts of the Kenya Privacy Law Review Case Digest into a single reconciled volume. Every entry carried across multiple drafts under different working numbers has been resolved to one canonical citation; no authority appears twice. Twenty-six cases across four Parts are reproduced here in full, in the Gold Standard format. One further authority — *Safaricom v Mureithi* — was identified but is not published: the source drafts themselves record a verification hold after the official judgment link returned an access error, consistent with this Review's editorial policy that a missing fact is preferable to a fabricated one.*

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All 26 cases published in this volume, in the order they appear (Digest No. 001–026), with the page each begins on. One further authority — *Safaricom v Mureithi* — was identified in the source drafts but is not published here: the drafts themselves record a verification hold after the official judgment link returned an access error.

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GLOSSARY OF LEGAL DOCTRINES

Doctrines recurring across the volume, in alphabetical order, each cross-referenced to the case(s) in this volume where the doctrine is discussed. Definitions are editorial paraphrases for quick reference, not statutory text — consult the Data Protection Act, 2019 and the cited judgments directly for precise wording.

Automated Decision-Making (s.35, Data Protection Act)

Where a decision affecting a person is generated substantially or solely by system-processed data, the controller must ensure meaningful human review of the accuracy and continuing relevance of that data — not merely a nominal sign-off.

See: B.M. v NTS A (KPLR 006, p. 18) · G.K. v NTS A (KPLR 007, p. 20) · SKM v NTS A (KPLR 008, p. 22)

CCTV & Surveillance

A legitimate security purpose justifies the least intrusive camera configuration reasonably capable of achieving that purpose — it does not justify a configuration capable of capturing a neighbour's or third party's private space.

See: K.O. v H.M. (KPLR 025, p. 56)

Comparator Evidence in Discrimination Litigation

A discrimination claimant may in principle use a comparator's employment data where necessary to establish, exercise or defend a legal claim, but must still identify the specific material sought and use the correct evidentiary procedure to obtain it.

See: Gloria Meli Musau v Microsoft (KPLR 009, p. 24) · Obwoye v Flamingo Horticulture (KPLR 015, p. 36)

Compensation & Enforcement Notices

The ODPC may award compensation to a data subject and issue an enforcement notice directing a controller to cease unlawful processing; both are reviewable on appeal to the High Court on substantive or procedural grounds.

See: Grain Industries v E.M. (KPLR 001, p. 8) · Mind Quest v M. & 2 Others (KPLR 003, p. 12) · Premier Credit v M.K. (KPLR 016, p. 38)

Consent — Attributability to the Data Subject

Consent to the commercial use of personal data, including an image, must be traceable to the data subject personally; consent obtained from a family member, agent or other intermediary is no substitute, however innocently obtained.

See: Grain Industries v E.M. (KPLR 001, p. 8) · M. v Julie Njubi Muiruri (KPLR 002, p. 10)

Consent — Burden of Proof

Where a controller's statutory burden is to demonstrate consent, a complainant who alleges a specific contractual limit on that consent (such as a time limit) must independently prove the existence and terms of that limit.

See: Mind Quest v M. & 2 Others (KPLR 003, p. 12)

Constitutional Avoidance & Forum

A dispute pleading both employment and constitutional privacy claims is not automatically confined to the ordinary employment or ODPC complaint mechanism; where genuine constitutional issues are pleaded, the constitutional forum retains jurisdiction.

See: A.M. v Agence Française de Développement (KPLR 017, p. 40) · M. v Julie Njubi Muiruri (KPLR 002, p. 10)

Data Accuracy & Correction (ss.25(f), 26(d)-(e))

Personal data used to justify a consequential decision must be accurate and current; a data subject has a right to have inaccurate or outdated information corrected or deleted, and a decision-maker may not shift that burden onto the data subject.

See: B.M. v NTS A (KPLR 006, p. 18) · G.K. v NTS A (KPLR 007, p. 20) · SKM v NTS A (KPLR 008, p. 22)

Data Protection Impact Assessment — DPIA (s.31)

Before undertaking processing likely to result in high risk to data subjects, a controller must conduct a DPIA. This is a precondition of lawful processing, not a discretionary or after-the-fact courtesy.

See: Republic v Mucheru (Huduma Card) (KPLR 023, p. 52)

Discovery & Third-Party Disclosure

A litigant seeking another person's personal data through discovery must identify specific, relevant and necessary documents; a request for an entire account or an unidentified category of records will ordinarily fail, regardless of how compelling the underlying claim.

See: Gloria Meli Musau v Microsoft (KPLR 009, p. 24) · *N.K. v Credit Bank* (KPLR 011, p. 28) · *Sigowo v Central Bank of Kenya* (KPLR 014, p. 34) · *Obwoye v Flamingo Horticulture* (KPLR 015, p. 36)

Lawful Basis — Legal Obligation (s.30(1)(b)(ii))

Processing or disclosure without the data subject's consent may still be lawful where necessary for the controller's compliance with an independent legal obligation, such as a bank's duty to inform a deceased customer's estate executors.

See: S.S. v Prime Bank (KPLR 019, p. 44)

Lawful Basis — Statutory Mandate

Where another statute confers an independent public function on a controller, the first question is not whether the data subject consented but what legal authority governs the processing; the controller must then identify which Data Protection Act safeguards apply to that authorised processing.

See: Mwibaki v NCLR (KPLR 020, p. 46) · *Okiya Omtatah v Attorney General* (KPLR 022, p. 50) · *Law Society of Kenya v CA* (KPLR 024, p. 54) · *Katiba Institute v CA* (KPLR 026, p. 58)

Law-Enforcement Processing Exception (s.28(2)(f))

Personal data may be indirectly collected without a suspect's consent where necessary for the prevention, detection, investigation, prosecution or punishment of crime — though this does not render all covert evidence-gathering automatically lawful.

See: Cheruiyot v EACC (KPLR 021, p. 48)

Personal Data — Classification

Information not obviously identifying on its own — such as a device identifier — becomes personal data once it is capable of being connected to an identifiable individual, triggering the Act's protections from that point.

See: Katiba Institute v CA (IMEI) (KPLR 026, p. 58)

Procedural Fairness in ODPC Investigations (Article 47)

The ODPC's regulatory status does not exempt it from ordinary requirements of fair administrative action — proper notice, a genuine opportunity to respond, and a documented investigation. A breach of these safeguards can invalidate a determination without the High Court needing to decide the underlying substantive liability.

See: Metropolis Star Lab v J.K. (KPLR 010, p. 26) · *Premier Credit v M.K.* (KPLR 016, p. 38)

Publication & Confidential Information

A lawful disclosure of information to a regulator does not itself authorise onward public dissemination of the same material; conversely, a body with an independent statutory publication mandate is not automatically required to obtain consent before publishing.

See: G. & 4 Others v Waigwa (KPLR 018, p. 42) · *Mwibaki v NCLR* (KPLR 020, p. 46)

Purpose Limitation

Personal data lawfully collected for one specified purpose may not automatically be repurposed for an incompatible purpose; a licence or consent given for one use does not extend to an unrelated use, however convenient.

See: M. v Julie Njubi Muiruri (KPLR 002, p. 10) · *Aventus Technology v D.N.* (KPLR 004, p. 14)

Redaction as a Proportionate Remedy

Where personal data is genuinely relevant to litigation but implicates a third party's privacy, a court may order redacted or controlled disclosure rather than either wholesale production or outright refusal.

See: Sigowo v Central Bank of Kenya (KPLR 014, p. 34)

Right of Access to One's Own Data

A controller cannot invoke the Data Protection Act, or third-party confidentiality generally, as a blanket ground for refusing a data subject access to information concerning that subject personally — including a corporate customer's own banking or legal records.

See: TRV Towers v Bank of India (KPLR 012, p. 30) · *Waiyaki Way Developers v Asega* (KPLR 013, p. 32)

CASE DIGEST · KPLR 001

VOLUME I · DIGEST NO. 001 · PART I: CONSENT, LIKENESS & PURPOSE LIMITATION

GRAIN INDUSTRIES LIMITED v E.M. & OFFICE OF THE DATA PROTECTION COMMISSIONER

[2024] KEHC 14003 (KLR) · Civil Appeal E186 of 2024
High Court of Kenya at Mombasa · Hon. J. K. Ng'arg'ar J. · 12 November 2024
On appeal from ODPC Complaint No. 387 of 2024

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Mombasa — Civil Appeal
OUTCOME	Appeal dismissed; Commissioner's determination upheld in full
COMPENSATION	KES 1,000,000 (upheld)
CORE QUESTION	Whether an intermediary's consent may substitute for the data subject's own

PRINCIPAL DOCTRINE

Consent to the commercial use of personal data must be attributable to the data subject herself; a controller may not rely on consent obtained from another person in relation to her image.

BRIEF FACTS

GRAIN INDUSTRIES LIMITED used E.M.'s photograph, without her consent, on billboards along the Mombasa–Malindi Highway — including the Nyali and Kibarani areas of Mombasa and the Likoni area of Kilifi County — and in YouTube and social-media advertising captioned “Tunashukuru mama wa Ajabu.” She came upon the billboard herself, in the course of her ordinary daily activities, on or about 30 August 2023; the image had reached the company indirectly, through a marketing arrangement made separately by her adult daughter.

On her complaint of 6 March 2024, the Data Commissioner's officers inspected the sites, confirmed the billboards had since been removed, and found the use unlawful for want of the Respondent's own consent — together with violations of her rights to be informed and to erasure. She was awarded KES 1,000,000 in compensation, and an enforcement notice was issued.

Grain Industries appealed, contending among other things that the determination had issued outside the statutory period, that it had been denied an opportunity to respond to the Respondent's rejoinder, and that her adult daughter ought to be treated as a relevant data controller in her own right.

ISSUES

- Whether the Commissioner violated Grain Industries' procedural and fair-hearing rights.
- Whether the Commissioner's determination was issued within the statutory period.
- Whether Grain Industries unlawfully processed the Respondent's personal data.
- Whether Grain Industries had complied with its obligations under the Data Protection Act.
- Whether the compensation awarded was justified.

HOLDING

Appeal dismissed. The High Court upheld the Commissioner's determination in full — findings on the rights to be informed and to erasure, and on unauthorised commercial use — together with the KES 1,000,000 award.

Neither the procedural nor the limitation-period objection warranted disturbing it; consent, the Court held, must be connected to the actual data subject.

COURT'S REASONING

Commercial use of the Respondent's image was processing of her personal data, requiring a lawful basis tied to her as the data subject. That the photograph reached the company through her daughter did not, without more, establish her own authorisation.

A family, agency, or intermediary relationship does not by itself establish the data subject's consent: authorisation must be traceable to her, and to the specific processing undertaken.

RATIO DECIDENDI

A controller using an individual's image commercially must establish a lawful basis attributable to that individual. An intermediary's consent, absent proof of authority to bind the data subject, is no substitute.

SIGNIFICANCE

Binding on advertisers and marketers using personal likenesses: consent is personal to the data subject, and lawful possession of an image confers no automatic authority to repurpose it commercially.

KEY TAKEAWAY

Possession of an image, or an intermediary's consent, is not consent from the person depicted. Demonstrate your own lawful basis for the specific commercial use.

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CASE DIGEST · KPLR 002

VOLUME I · DIGEST NO. 002 · PART I: CONSENT, LIKENESS & PURPOSE LIMITATION

M. v JULIE NJUHI MUIRURI (T/A HUMAN HAIR CENTER)

[2024] KEHC 6970 (KLR) · Petition E032 of 2023
High Court of Kenya at Nairobi · Hon. L. N. Mugambi J. · 13 June 2024

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi — Constitutional Petition
OUTCOME	Petition succeeds; Respondent liable for unauthorised commercial use of the Petitioner's image
COMPENSATION	KES 240,000 (privacy & dignity) plus costs
CORE QUESTION	Whether a licence to one business extends to an unrelated third party's commercial use

PRINCIPAL DOCTRINE

Where commercial exploitation of a person's image implicates dignity and privacy beyond ordinary data processing, the High Court's constitutional jurisdiction is not ousted by the Data Protection Act's exhaustion requirement.

BRIEF FACTS

THE PETITIONER contracted with New Level Collection Limited on 19 January 2022 to provide modelling services for one year — an arrangement that, during its term, barred her from entering any other modelling agreement. Around 2022, she discovered her photographs advertising hair products on the Instagram page of the Respondent, a business with no agreement with her, or, on her case, with New Level Collection for that purpose.

On her complaint, New Level Collection had the photographs removed. The Respondent nonetheless maintained the claim was unfounded, relying on the relationship between the Petitioner and the modelling agency through which the images had been obtained, and raised a preliminary objection that the dispute should first have gone to the Data Commissioner.

The central factual question was whether the Petitioner's contractual relationship with New Level Collection authorised an unrelated third party, the Respondent, to use her image for its own commercial advertising. She sued, denying consent and framing the claim as implicating her constitutional rights to dignity, privacy, and property.

ISSUES

- Whether the preliminary objection on exhaustion was merited.
- Whether the Respondent violated the Petitioner's rights to dignity, privacy, and property under Articles 28, 31, and 40.
- Whether the Petitioner was entitled to the reliefs sought.

HOLDING

Petition allowed. The Court rejected the exhaustion objection — the claim's constitutional dimensions took it beyond the Data Protection Act's ordinary complaint mechanism — and found the Respondent's commercial exploitation of the Petitioner's image, without her consent, violated her rights to dignity and privacy. It awarded KES 240,000 in compensation, with costs.

COURT'S REASONING

Although section 8(1)(f) of the Data Protection Act empowers the Commissioner to investigate processing complaints, the petition invoked dignity, privacy, and property under Articles 28, 31, and 40 — claims the statutory mechanism did not confine, leaving the High Court's Article 165(3)(b) jurisdiction intact.

On the merits, the Petitioner's agreement was with New Level Collection alone; the Respondent, a stranger to that contract, could not treat it as authority to exploit her image for its own advertising. A licence to one entity is not a licence to another.

RATIO DECIDENDI

A contractual licence to use a person's image, granted to one entity, does not extend to an unrelated third party absent an independent legal basis; and where commercial exploitation of an image implicates dignity and privacy, the claim may proceed constitutionally without first exhausting the Data Protection Act's complaint mechanism.

SIGNIFICANCE

Clarifies that image and personality-rights claims bound up with dignity and privacy need not first exhaust ODPC complaint procedures, and confirms that a business cannot rely on a rival's licensing arrangement to justify its own commercial use of someone's likeness.

KEY TAKEAWAY

A licence you were never given is not yours to rely on. Verify your own lawful basis before commercially using an image obtained through someone else's arrangement.

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CASE DIGEST · KPLR 003

VOLUME I · DIGEST NO. 003 · PART I: CONSENT, LIKENESS & PURPOSE LIMITATION

MIND QUEST LIMITED v M. & 2 OTHERS

[2025] KEHC 3891 (KLR) · Civil Appeal E674 of 2024
High Court of Kenya at Nairobi · Hon. S. N. Mutuku J. · 5 March 2025
On appeal from ODPC Complaint No. 151 of 2024, decided 22 April 2024

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi — Civil Appeal
OUTCOME	Appeal allowed; Commissioner's determination and compensation set aside
COMPENSATION	KES 1,500,000 award set aside; each party to bear own costs
CORE QUESTION	Whether an unproven model-release agreement could establish a time-limited consent

PRINCIPAL DOCTRINE

A complainant alleging that consent was contractually confined to a fixed period must prove the existence and terms of that limitation; the Data Protection Act's burden on controllers to show consent does not excuse a complainant from proving the contractual restriction relied upon.

BRIEF FACTS

MIND QUEST LIMITED used photographs of the Respondents taken at a commercial photoshoot for its “Accessorize with Style” brand, engaged through Couture Magazine and evidenced by an invoice dated 17 May 2017; the Respondents had each already been paid KES 5,000 for their images.

The Respondents alleged Mind Quest continued using the photographs beyond the period to which they said they had agreed, and claimed KES 700,000 per year of unauthorised use — KES 6.3 million in total — together with cessation and removal of the images.

On complaint, the Data Commissioner found Mind Quest liable for commercial use without express consent and awarded KES 1.5 million. Mind Quest appealed, disputing the finding of no consent and arguing the Commissioner had wrongly relied on an unexecuted draft contract to infer a three-year limit on the permitted use.

ISSUES

- Whether a valid contract existed between Mind Quest and the Respondents.
- Whether the evidence established the scope and duration of consent.
- Whether the Commissioner properly weighed the documents presented.
- Whether the continued commercial use of the images was unlawful.
- Whether the compensation award could stand.

HOLDING

Appeal allowed. The High Court set aside both the Commissioner's determination and the KES 1,500,000 award; each party was ordered to bear its own costs.

COURT'S REASONING

The Respondents relied on a model-release agreement but produced no signed copy — the record held only a blank template. The Court could not determine whether a binding contract existed, its terms, or whether it truly limited image use to three years.

Section 32(1) of the Data Protection Act places the burden of proving consent on the controller, but that burden does not relieve a complainant of proving the factual foundation of a contractual restriction they themselves allege.

RATIO DECIDENDI

A complainant alleging that consent was contractually confined to a fixed period must prove the existence and terms of that limitation; the controller's statutory burden to demonstrate consent does not substitute for that proof.

SIGNIFICANCE

Clarifies that the Data Protection Act's burden-shifting on consent operates alongside, not instead of, ordinary evidentiary rules: a complainant who alleges a specific contractual limit must still prove it.

KEY TAKEAWAY

An unsigned template proves nothing. If you rely on a model-release period to challenge continued use, produce the signed agreement — not a blank draft.

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CASE DIGEST · KPLR 004

VOLUME I · DIGEST NO. 004 · PART I: CONSENT, LIKENESS & PURPOSE LIMITATION

AVENTUS TECHNOLOGY LIMITED v D.N.

[2025] KEHC 9218 (KLR) · Civil Appeal 447 of 2024
High Court of Kenya at Nairobi · Hon. A. N. Ogeri J. · 27 June 2025
On appeal from ODPC Complaint No. 2506 of 2023

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi — Civil Appeal
OUTCOME	Appeal dismissed; Commissioner's determination upheld in full
COMPENSATION	KES 250,000 (upheld)
CORE QUESTION	Whether data supplied for one purpose (an emergency contact) may lawfully be repurposed for debt collection

PRINCIPAL DOCTRINE

Personal data collected for one specified purpose may not automatically be repurposed for an incompatible purpose; purpose limitation follows the data even where it was lawfully obtained in the first place.

BRIEF FACTS

D.N. began receiving repeated calls, including verbally abusive debt-collection calls, concerning a loan he had never taken out. AVENTUS TECHNOLOGY LIMITED, trading as Lendplus, had obtained his number from an actual borrower who had listed him as an emergency contact.

On D.N.'s complaint, the ODPC found that Aventus had unlawfully processed his personal data by using an emergency-contact number for debt-collection purposes, and awarded KES 250,000 in compensation together with an enforcement notice.

Aventus appealed, arguing that it had not itself controlled the data, that the borrower rather than Aventus had supplied the number, and that compensation had not been properly pleaded or proved.

ISSUES

- Whether Aventus lawfully processed D.N.'s personal data.
- Whether data supplied for the limited purpose of an emergency contact could be repurposed for debt recovery.
- Whether the ODPC properly attributed the processing to Aventus.
- Whether the compensation award was justified.

HOLDING

Appeal dismissed. The High Court upheld the ODPC's determination and the KES 250,000 award in full, and directed compliance with the enforcement notice within 30 days.

COURT'S REASONING

Lawful collection of personal data for one purpose does not create a general licence for incompatible subsequent processing. An emergency-contact number is supplied for the limited function of being reachable in an emergency.

Converting that number into a debt-collection communication channel required its own lawful basis — a basis Aventus did not establish. Attributing the processing to the borrower alone did not relieve Aventus of responsibility for how the number was subsequently used.

RATIO DECIDENDI

The lawful collection of personal data for one purpose does not create a general licence for subsequent incompatible processing. An emergency-contact number cannot be converted into a debt-collection communication channel without an independent lawful basis.

SIGNIFICANCE

Binding on digital lenders and any business using third-party contact details obtained from a borrower or customer: the data of a borrower and the data of an emergency contact must not be treated as interchangeable.

KEY TAKEAWAY

Being listed as someone's emergency contact does not make you fair game for their debt collectors. Purpose limitation follows the data, not just the paperwork that first collected it.

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August 2026

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CASE DIGEST · KPLR 005

VOLUME I · DIGEST NO. 005 · PART I: CONSENT, LIKENESS & PURPOSE LIMITATION

K. v CHUKA UNIVERSITY

[2026] KEHC 3493 (KLR) · Constitutional Petition E001 of 2023
High Court of Kenya at Chuka · Hon. R. L. Korir J. · 17 March 2026

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Chuka — Constitutional Petition
OUTCOME	Petition dismissed on the merits; jurisdiction upheld
COMPENSATION	None awarded
CORE QUESTION	Whether the Petitioner proved he was identifiable in the photograph and that the University was responsible for its use

PRINCIPAL DOCTRINE

Surviving a jurisdictional or exhaustion objection does not establish substantive liability; a claimant alleging unauthorised use of an image must still prove identification, provenance, and use by the respondent.

BRIEF FACTS

K. alleged that CHUKA UNIVERSITY had used his image, as part of a group photograph, for financial or commercial purposes without his consent. An earlier preliminary objection on jurisdiction had already been dismissed, leaving the High Court to determine the petition on its merits.

The University did not concede that the Petitioner was one of the persons depicted, or that the photograph originated with it.

ISSUES

- Whether the Court retained jurisdiction despite the ODPC's statutory complaint mechanism.
- Whether the earlier jurisdictional ruling barred re-litigation of the same objection.
- Whether the Petitioner was identifiable in the photograph.
- Whether he proved the University was responsible for the image's use.
- Whether the alleged use violated Articles 28, 31 and 40.

HOLDING

The Court confirmed its jurisdiction but dismissed the petition on the merits. The Petitioner failed to establish, on the balance of probabilities, that he was depicted in the photograph or that it originated from the University. Each party was ordered to bear its own costs.

COURT'S REASONING

Jurisdiction and merit are distinct enquiries. Having cleared the jurisdictional threshold, the Petitioner still carried the ordinary burden of proving the essential elements of an image-misuse claim.

That burden required showing that he was identifiable, that the image came from the Respondent, and that its use was unlawful. The evidence before the Court did not meet it.

RATIO DECIDENDI

Clearing a jurisdictional or exhaustion objection does not establish substantive liability. A claimant alleging unauthorised use of an image must still prove identification, provenance, and use by the respondent.

SIGNIFICANCE

A caution to claimants as much as controllers: a privacy claim cannot rest on an assertion that an image merely resembles or may contain the claimant. Organisations should nonetheless retain records of a photograph's source, purpose, and consent basis.

KEY TAKEAWAY

Winning the right to be heard is not the same as winning the case. If you allege your image was used without consent, be ready to prove it was actually you, and that it actually came from them.

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CASE DIGEST · KPLR 006

VOLUME I · DIGEST NO. 006 · PART II: AUTOMATED DECISION-MAKING, PROFILING, DATA
ACCURACY & CORRECTION

B.M. v NATIONAL TRANSPORT AND SAFETY AUTHORITY

[2023] KETLABT 664 (KLR) · Appeal TLAB/E015 of 2022
Transport Licensing Appeals Board · 16 August 2023

THE CASE AT A GLANCE

FORUM	Transport Licensing Appeals Board
OUTCOME	Appeal allowed; NTSA directed to issue the driving licence within 14 days
COMPENSATION	Not applicable — licensing appeal
CORE QUESTION	Whether a stale, inaccurate criminal-record entry could lawfully justify refusal of a PSV badge

PRINCIPAL DOCTRINE

Accuracy of government-held personal data is a continuing obligation; stale criminal-record information cannot lawfully drive a consequential administrative decision.

BRIEF FACTS

B.M., an adult resident of Murang'a County and holder of an NTSA driving licence, applied for a Public Service Vehicle badge. NTSA declined the application because his Police Clearance Certificate carried an “OUTSTANDING” theft entry.

The underlying offence had been committed when B.M. was a child of approximately 15–17 years. He had been convicted and served a three-year sentence at Borstal Institution, Mombasa. Despite completing that sentence, his 2019 Police Clearance Certificate continued to describe the matter as outstanding — an error that, left uncorrected, blocked the licence he needed for his livelihood. NTSA raised no objection beyond the Police Clearance Certificate itself, and had indicated willingness to settle.

ISSUES

1. Whether NTSA could refuse the PSV badge because of the criminal-record entry.
2. Whether the information was accurate and current.
3. Whether the processing engaged section 35 of the Data Protection Act.
4. Whether B.M. had correction or deletion rights.
5. Whether the fact that the offence occurred during childhood affected the analysis.

HOLDING

Appeal allowed. NTSA was directed to issue the driving licence within fourteen days, with B.M. required to accumulate four years' driving experience before qualifying for the PSV badge itself.

COURT'S REASONING

NTSA could, in principle, require a certificate of good conduct — the defect was not the licensing requirement itself, but the inaccurate information the certificate contained. Section 25(f) of the Data Protection Act requires accurate and current data; sections 26(d) and (e) support correction and deletion; and automated, system-generated information that materially affects a person engages section 35.

The Tribunal held the certificate was outdated and incorrect, and that a statutory requirement to consider a record does not excuse the decision-maker from confirming that the record remains true.

RATIO DECIDENDI

A statutory requirement to consider a criminal-record certificate does not relieve the decision-maker of the obligation to ensure that the information relied upon remains accurate and current.

SIGNIFICANCE

Binding guidance for any public-sector controller consuming another agency's database for a consequential decision: source, currency, and correction mechanisms must be established before adverse action is taken — particularly where the underlying record concerns a childhood offence.

KEY TAKEAWAY

A criminal record does not expire on its own — but neither does it stay accurate by default. If a government database says 'outstanding' about something that was resolved years ago, that inaccuracy is itself a violation the law protects you from.

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CASE DIGEST · KPLR 007

VOLUME I · DIGEST NO. 007 · PART II: AUTOMATED DECISION-MAKING, PROFILING, DATA
ACCURACY & CORRECTION

G.K. v NATIONAL TRANSPORT & SAFETY AUTHORITY

[2023] KETLABT 663 (KLR) · Appeal TLAB/E041 of 2022
Transport Licensing Appeals Board · 14 August 2023

THE CASE AT A GLANCE

FORUM	Transport Licensing Appeals Board
OUTCOME	Appeal allowed; NTSA directed to issue the PSV badge within 14 days
COMPENSATION	Not applicable — licensing appeal
CORE QUESTION	Whether a nominal human sign-off satisfies section 35's requirement of meaningful review of an automated decision

PRINCIPAL DOCTRINE

Meaningful human review under section 35 requires substantive examination of the information driving the decision; a nominal human sign-off is insufficient.

BRIEF FACTS

G.K. held an NTSA driving licence and had previously obtained PSV badges in 2018 and 2020 after producing a clean Police Clearance Certificate — his October 2018 certificate carried a “NIL” remark.

When he applied again, his 2022 certificate carried an adverse “Murder” entry. G.K. produced evidence that he had been charged in 2011, placed on probation for three years, and completed that probation in 2014 — meaning the same person's official record had changed from “NIL” to “Murder” with no evidence of any new proceeding.

ISSUES

1. Whether the historical criminal information justified continued administrative consequences.
2. Whether the certificate was accurate and current.
3. Whether the decision was solely automated, triggering section 35 safeguards.
4. Whether NTSA and the DCI had an obligation to maintain accurate information.
5. Whether Article 47 fair administrative action was violated.

HOLDING

Appeal allowed. NTSA was directed to issue the PSV badge within fourteen days.

COURT'S REASONING

A completed criminal sentence does not automatically justify continuing adverse administrative consequences indefinitely. Reliance on automated information that significantly affected G.K. engaged section 35; the certificate was not current, and the DCI was identified as responsible for maintaining the accuracy of the underlying information.

The failure to provide efficient and fair administrative action violated Article 47. The Tribunal cited the reasoning in *In the Matter of Barnes v Tofany*, 27 NY2d 74 (1970), on the relationship between concluded criminal proceedings and later administrative sanctions.

RATIO DECIDENDI

Where an administrative decision substantially depends upon system-generated personal data, meaningful human review requires examination of the accuracy and continuing legal relevance of the underlying information.

SIGNIFICANCE

A companion authority to *B.M. v NTSA*: together they establish that a rubber-stamp human sign-off on an automated adverse decision does not satisfy section 35 — the reviewer must actually engage with whether the data is still true.

KEY TAKEAWAY

Someone signing off on a computer-generated decision is not the same as someone checking it. If a record can flip from 'clean' to 'murder' with no new offence, the system — and the human behind it — failed.

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CASE DIGEST · KPLR 008

VOLUME I · DIGEST NO. 008 · PART II: AUTOMATED DECISION-MAKING, PROFILING, DATA
ACCURACY & CORRECTION

SKM v NATIONAL TRANSPORT AND SAFETY AUTHORITY

[2023] KETLABT 682 (KLR)
Transport Licensing Appeals Board

THE CASE AT A GLANCE

FORUM	Transport Licensing Appeals Board
OUTCOME	Appeal allowed; NTSA directed to issue the PSV badge within 14 days
COMPENSATION	Not applicable — licensing appeal
CORE QUESTION	Whether the official origin of a government database entry makes stale information legally reliable

PRINCIPAL DOCTRINE

Stale inter-agency government databases cannot lawfully generate consequential automated decisions merely because the information originates from another public authority.

BRIEF FACTS

SKM applied for a PSV badge. NTSA relied on a Police Clearance Certificate containing an “Outstanding” entry relating to a matter dating from 2006.

SKM demonstrated that the criminal proceedings had concluded by discharge under section 87(a) of the Criminal Procedure Code; the underlying court file had since been destroyed, but the adverse entry remained live in the DCI database. NTSA raised no objection beyond that stale record.

ISSUES

1. Whether the database entry remained accurate.
2. Whether NTSA could rely on it notwithstanding.
3. Whether the resulting decision was, in substance, solely automated.
4. Whether sections 35 and Article 47 were engaged.

HOLDING

Appeal allowed. NTSA was directed to issue the PSV badge within fourteen days.

COURT'S REASONING

The information was inaccurate because the criminal matter had concluded years earlier; continued reliance on it was impermissible. The Tribunal treated reliance on the computer-generated entry as, in substance, a decision based solely on automated processing with significant consequences for SKM, engaging both section 35 and Article 47.

RATIO DECIDENDI

The official origin of data does not make inaccurate data legally reliable. The downstream decision-maker must confront the accuracy of the information before allowing it to determine a significant administrative outcome.

SIGNIFICANCE

Completes the NTSA trilogy: source, database, generated record, decision system, human review, and adverse decision must all be auditable — a principle equally relevant to credit databases, immigration databases, sanctions lists, and health registers.

KEY TAKEAWAY

A record being government-issued doesn't make it correct. If the underlying matter was resolved — even decades ago — the database has to catch up, not the citizen.

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CASE DIGEST · KPLR 009

VOLUME I · DIGEST NO. 009 · PART III: ACCESS, DISCOVERY, THIRD-PARTY DISCLOSURE & REGULATORY PROCEDURE

GLORIA MELI MUSAU & ANOTHER v MICROSOFT EAST AFRICA LIMITED

[2021] KEELRC 526 (KLR) · Petition No. 223 of 2019 (consolidated with Petition No. 6 of 2020)
Employment and Labour Relations Court at Nairobi · Hon. J. Rika J. · 9 November 2021

THE CASE AT A GLANCE

FORUM	Employment and Labour Relations Court at Nairobi
OUTCOME	Application to compel production declined
COMPENSATION	Not applicable — interlocutory application; no order as to costs
CORE QUESTION	Whether non-party employees' confidential payroll records must be produced merely because they may assist a discrimination claim

PRINCIPAL DOCTRINE

Third-party employment records cannot ordinarily be compelled merely because they may assist a discrimination claim; privacy and data-protection obligations continue to protect non-party employees.

BRIEF FACTS

GLORIA MELI MUSAU and a co-Petitioner, former employees of Microsoft East Africa Limited, alleged they had been denied bonus payments on account of race. To support the claim, they sought an order compelling production of payslips and Microsoft MINT performance records for three named comparator employees — none of them parties to the case — proposing that the records be sealed and confidential.

Microsoft opposed the application as a fishing expedition into private, confidential third-party records, protected under Article 31 and the Data Protection Act.

ISSUES

1. Whether the Court should compel production of the non-party employees' payslips and performance information.
2. Whether the Petitioners could establish their discrimination claim without compelling production of the private records of their former colleagues.

HOLDING

Application declined. The Court held that the Petitioners could prosecute their discrimination claim without infringing the privacy and confidentiality of their former colleagues, and rejected the proposed sanction of striking out Microsoft's response if the records were withheld.

COURT'S REASONING

All employees had individually agreed contracts of employment; their payslips were private and confidential records. Placing the documents before the Court would not remove that private character — once part of the court record, they would become subject to further scrutiny and contestation, so the Court was concerned with the downstream consequences of disclosure, not merely the initial step.

RATIO DECIDENDI

A party alleging discrimination must establish the evidential basis of the claim; the court will not necessarily facilitate a fishing expedition into the confidential employment records of non-party employees merely because the information may be useful as comparator evidence.

SIGNIFICANCE

An early, important post-DPA authority distinguishing “relevant” from “automatically discoverable”: employers should treat remuneration records as protected personal information and assess third-party disclosure requests document-by-document, not case-by-case.

KEY TAKEAWAY

Needing evidence doesn't entitle you to someone else's payslip. Identify precisely what you need and why — a blanket request for a colleague's confidential file is a request the court can, and likely will, refuse.

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CASE DIGEST · KPLR 010

VOLUME I · DIGEST NO. 010 · PART III: ACCESS, DISCOVERY, THIRD-PARTY DISCLOSURE & REGULATORY PROCEDURE

METROPOLIS STAR LAB KENYA LTD v J.K. & ANOTHER

[2025] KEHC 8211 (KLR) · Civil Appeal E1140 of 2024
High Court of Kenya at Nairobi · Hon. A. C. Mrima J. · 12 June 2025
On appeal from consolidated ODPC Complaints Nos. 0784 and 0916 of 2024

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi — Civil Appeal
OUTCOME	Appeal allowed; ODPC determination quashed and remitted
COMPENSATION	Not applicable — determination set aside before compensation issue reached
CORE QUESTION	Whether the ODPC's regulatory status exempts it from ordinary procedural fairness requirements

PRINCIPAL DOCTRINE

Procedural fairness in ODPC complaint determinations: the Commissioner is a statutory regulator, but that status does not exempt it from constitutional and statutory requirements of procedural fairness.

BRIEF FACTS

J.K. and a second respondent complained that Metropolis Star Lab had unlawfully processed their telephone numbers for marketing after they had repeatedly opted out. The ODPC investigated and made a determination against Metropolis Star Lab.

On appeal, Metropolis Star Lab did not primarily contest the substance, but argued it had not been afforded a fair and procedurally lawful opportunity to respond during the investigation and determination.

ISSUES

- Whether the ODPC followed a lawful and procedurally fair complaints process.
- Whether the Appellant received the procedural protections required by Article 47.
- Whether Article 50(1) fair-hearing requirements applied.
- Whether the Data Protection (Complaints Handling Procedure and Enforcement) Regulations had been followed.
- Whether the determination could stand despite the procedural defects found.

HOLDING

Appeal allowed. The Court declared the ODPC determination non-compliant with Article 47, Article 50(1), the Fair Administrative Action Act, the Data Protection Act, and the applicable Complaints Handling Regulations. The determination was set aside and quashed, and the matter remitted to the Commissioner for a fresh determination according to law. Each party bore its own costs.

COURT'S REASONING

Regulation 3 expressly requires a fair, impartial, just, expeditious, proportionate and affordable complaints process; Regulation 13(3) requires the Commissioner, during investigations, to be guided by the Fair Administrative Action Act. The Court found these requirements were not met on the facts before it.

RATIO DECIDENDI

The ODPC's regulatory status does not exempt it from constitutional and statutory requirements of procedural fairness; an investigation must maintain an auditable record of notice, disclosure, and a meaningful opportunity to respond.

SIGNIFICANCE

A controller facing an ODPC investigation should preserve all correspondence, request access to material relied upon, and distinguish a substantive disagreement with a finding from a genuine procedural-fairness objection — the latter can succeed even where the underlying conduct is not seriously in dispute.

KEY TAKEAWAY

Being right on the law doesn't excuse a regulator from following its own process. If the Commissioner didn't give you a fair chance to respond, that alone can unwind the whole determination.

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CASE DIGEST · KPLR 011

VOLUME I · DIGEST NO. 011 · PART III: ACCESS, DISCOVERY, THIRD-PARTY DISCLOSURE & REGULATORY PROCEDURE

N.K. v CREDIT BANK PLC

[2024] KEELRC 2142 (KLR) · Cause E555 of 2023

Employment and Labour Relations Court at Nairobi · Hon. L. Ndolo J. · 31 July 2024

THE CASE AT A GLANCE

FORUM	Employment and Labour Relations Court at Nairobi
OUTCOME	Application disallowed, with costs in the cause
COMPENSATION	Not applicable — discovery application
CORE QUESTION	Whether a discovery application may seek access to an entire institutional email account rather than identified documents

PRINCIPAL DOCTRINE

A discovery application seeking access to an entire institutional email account is impermissible where the applicant fails to identify specific documents that are relevant and necessary to the proceedings.

BRIEF FACTS

N.K., formerly employed by Credit Bank PLC, sought a court order for access to her employment contracts, email correspondence and other documents from two accounts — including a shared “Westlands” branch account used by multiple staff — covering a four-year period, for use in her employment dispute.

The Bank opposed the application: the individual account had been deactivated after her termination, the shared account contained communications involving customers and other employees, and the request was, on its face, a broadside request for entire accounts rather than identified documents.

ISSUES

- Whether N.K. had established a proper basis for discovery.
- Whether she had identified specific documents.
- Whether the requested email access was relevant and necessary.
- Whether unrestricted access would compromise third-party privacy.

HOLDING

Application disallowed, with costs in the cause. The Court found the application was a broadside request that did not identify the specific documents sought, and so fell below the threshold for proper discovery.

COURT'S REASONING

Discovery requires that documents sought be specific, relevant, and necessary. N.K. had not identified particular emails or documents — she sought access to entire accounts, and that distinction was decisive, particularly given the shared account's mix of customer and employee communications.

RATIO DECIDENDI

A litigant cannot use discovery to obtain unrestricted access to an opponent's electronic information environment; the applicant must identify the documents sought and demonstrate their relevance and necessity.

SIGNIFICANCE

The Data Protection Act does not make electronic discovery impossible — it makes unstructured and excessive disclosure requests legally dangerous. A request for “all emails” is fundamentally different from a request for identified emails relating to an identified issue.

KEY TAKEAWAY

“Give me the whole account” is not a discovery request the court will grant. Know exactly what you're looking for before you ask for it.

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CASE DIGEST · KPLR 012

VOLUME I · DIGEST NO. 012 · PART III: ACCESS, DISCOVERY, THIRD-PARTY DISCLOSURE & REGULATORY PROCEDURE

TRV TOWERS LIMITED v BANK OF INDIA

[2024] KEHC 12927 (KLR) · Miscellaneous Civil Application E920 of 2023

High Court of Kenya at Nairobi (Milimani Commercial Courts) · Hon. J. W. W. Mong'are J. · 25 October 2024

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi — Commercial Courts
OUTCOME	Application allowed; Bank of India ordered to produce the requested documents
COMPENSATION	Not applicable — each party to bear own costs
CORE QUESTION	Whether the Data Protection Act may be invoked by a bank as a blanket basis for refusing a customer access to information about the customer's own account

PRINCIPAL DOCTRINE

The Data Protection Act cannot be used by a bank as a blanket basis for refusing a customer access to information concerning the customer's own account — a distinct question from disclosure of third-party personal information.

BRIEF FACTS

Facing a notice of sale from another lender, TRV Towers Limited resolved to conduct a forensic audit of its own affairs and requested its own account-opening forms, statements, mandates, board resolutions, and facility details from Bank of India.

The Bank refused, arguing it required instructions from all recognised account signatories before releasing the information, and that the company's board resolution did not establish that consent.

ISSUES

- Whether the Court should compel Bank of India to produce the requested banking information.

HOLDING

Application allowed. The Court held that TRV Towers was entitled to the information, since confidentiality could not be invoked where the information sought concerned the Applicant itself rather than an unrelated third party. Each party bore its own costs.

COURT'S REASONING

Following its own earlier decision in TRV Towers Limited v Bank of Baroda (Kenya) Limited [2024] KEHC 8595 (KLR), the Court held that a company controlled by Kenyan citizens may exercise the constitutional right of access to information, and expressly rejected the proposition that every request for bank information requires every account signatory's consent where the company is seeking information about itself.

RATIO DECIDENDI

The Data Protection Act does not create an absolute prohibition against disclosure to a data subject. A controller holding information concerning the applicant cannot invoke third-party privacy principles as a blanket justification for denying the applicant access to its own information.

SIGNIFICANCE

Financial institutions should distinguish a customer's own information from third-party information embedded within the same records — the former should not be refused merely by citing the Data Protection Act; where the latter is present, redaction or controlled disclosure is the appropriate response.

KEY TAKEAWAY

The Data Protection Act protects people from having their data misused — it isn't a excuse to withhold a customer's own records from the customer. If it's your account, "data protection" is not a lawful reason to shut you out of it.

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CASE DIGEST · KPLR 013

VOLUME I · DIGEST NO. 013 · PART III: ACCESS, DISCOVERY, THIRD-PARTY DISCLOSURE & REGULATORY PROCEDURE

WAIYAKI WAY DEVELOPERS LIMITED v ASEGA t/a NK MUGO & CO ADVOCATES

[2025] KEHC 12179 (KLR) · Civil Appeal E262 of 2024
High Court of Kenya at Nairobi (Milimani Law Courts) · Hon. T. W. Cherere J. · 15 May 2025

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi
OUTCOME	Application allowed; former advocate ordered to release all client files within 7 days
COMPENSATION	Not applicable — costs awarded against the Respondent
CORE QUESTION	Whether the Data Protection Act authorises an advocate to withhold a client's own legal files because they contain third-party personal data

PRINCIPAL DOCTRINE

The Data Protection Act does not authorise an advocate to withhold a client's own legal files merely because those files contain third-party personal data.

BRIEF FACTS

After terminating its relationship with its former advocates, Waiyaki Way Developers Limited instructed new counsel, who made repeated written requests for the client's legal files. The former advocates refused to release all the files, citing an advocate's lien for unpaid fees and the presence of confidential third-party information within the files.

ISSUES

- Whether the Respondent had a lawful lien over the Applicant's files.
- Whether the Data Protection Act barred or limited release of the files.
- Who should bear the costs of the application.

HOLDING

Application allowed. The Respondent was ordered to release all the Applicant's files and documents within seven days, and to bear the costs.

COURT'S REASONING

A lien must operate within lawful bounds and cannot obstruct access to justice; the Respondent had not shown it had delivered a fee note, filed a bill of costs, or initiated recovery proceedings, so the continued withholding lacked legal justification.

On the Data Protection Act point, the Court held that although the Act establishes obligations on controllers and processors, it does not extinguish a data subject's right to access their own personal data. The presence of third-party clients' information within the files did not provide a sufficient basis for withholding the Applicant's own files.

RATIO DECIDENDI

The Data Protection Act must not be transformed into a general withholding mechanism. Where a client seeks its own legal files, the advocate must identify a specific lawful basis for withholding them; third-party data may require protection, but that does not justify retaining the entire file.

SIGNIFICANCE

Law firms should implement data segregation and redaction protocols so that unpaid fees or third-party content in a file do not become a blanket justification for denying a client access to their own records — the correct response to embedded third-party data is redaction, not refusal.

KEY TAKEAWAY

Your file is your file. A professional can protect what belongs to someone else inside it — but cannot use that as a reason to keep the whole thing from you.

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CASE DIGEST · KPLR 014

VOLUME I · DIGEST NO. 014 · PART III: ACCESS, DISCOVERY, THIRD-PARTY DISCLOSURE & REGULATORY PROCEDURE

SIGOWO v CENTRAL BANK OF KENYA

[2025] KEELRC 2584 (KLR) · Cause E149 of 2025
Employment and Labour Relations Court at Nairobi · Hon. C. N. Baari J. · 29 September 2025

THE CASE AT A GLANCE

FORUM	Employment and Labour Relations Court at Nairobi
OUTCOME	Order for redacted disclosure within 21 days
COMPENSATION	Not applicable — costs in the cause
CORE QUESTION	Whether judicial disclosure of colleagues' personal data may be ordered, and on what terms, where the material is relevant to the applicant's own litigation

PRINCIPAL DOCTRINE

Judicial disclosure of employee personal data may be lawful where the information is genuinely relevant to litigation, but disclosure should be controlled and appropriately redacted to protect third-party privacy.

BRIEF FACTS

Bramwel Kibet Sigowo applied for production of Central Bank of Kenya's internal audit staff profiles from two internal staff translation exercises, to support allegations of discriminatory and differential treatment in his employment dispute. He argued he had previously had access to the same information during his employment, and that redaction could address any privacy concern.

The Bank objected on both procedural grounds (the application should have used the ordinary discovery procedure) and substantive grounds (the profiles contained employee personal data for which no consent had been obtained).

ISSUES

- Whether Sigowo had established a basis for an order compelling production of the internal audit staff profiles.
- How the Applicant's right to information and fair hearing should be balanced against the privacy and data-protection rights of the employees named in the profiles.

HOLDING

The Court ordered that a redacted version of the internal audit profiles be supplied to Sigowo within 21 days, ensuring compliance with the Data Protection Act, with costs in the cause.

COURT'S REASONING

The Court treated the application as a balancing exercise: the material sought was personal and substantially confidential, and Sigowo's prior workplace access to it did not give him an unrestricted right to obtain it in litigation. But a complete refusal would unnecessarily hamper his ability to prosecute his case — and both parties accepted that redacted disclosure could reconcile the competing interests.

RATIO DECIDENDI

Where personal data is relevant to litigation, the existence of privacy rights does not necessarily require complete suppression; the court can fashion a proportionate remedy through redaction, limited disclosure, or controlled inspection.

SIGNIFICANCE

One of the clearest authorities in this Review on redacted disclosure as the reconciliation mechanism between a litigant's right to a fair hearing and a third party's privacy — a template worth building into any organisation's litigation data-protection protocol.

KEY TAKEAWAY

Privacy and a fair hearing aren't always in conflict — redaction is often the answer to both. If you once had access to information at work, that doesn't mean you're entitled to the unredacted version in a lawsuit.

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CASE DIGEST · KPLR 015

VOLUME I · DIGEST NO. 015 · PART III: ACCESS, DISCOVERY, THIRD-PARTY DISCLOSURE & REGULATORY PROCEDURE

OBWOGE v FLAMINGO HORTICULTURE KENYA LIMITED

[2025] KEELRC 3346 (KLR) · Cause E001 of 2025
Employment and Labour Relations Court at Nakuru · Hon. J. Rika J. · 28 November 2025

THE CASE AT A GLANCE

FORUM	Employment and Labour Relations Court at Nakuru
OUTCOME	Both parties' applications declined; main claim to proceed
COMPENSATION	Not applicable — no order as to costs
CORE QUESTION	Whether a comparator's salary data may be used in discrimination litigation without falling foul of the Data Protection Act

PRINCIPAL DOCTRINE

Comparator employment data may be used in discrimination litigation where necessary to establish, exercise or defend a legal claim, but the claimant must still comply with ordinary evidentiary and procedural requirements.

BRIEF FACTS

Jamleck Obwoge, alleging unequal treatment and remuneration, identified a fellow employee, L.B., as a comparator, alleging she received superior pay for work of equal value. Flamingo applied to strike out the comparator allegation and to expunge documents containing L.B.'s salary information, arguing she was not a party and her data had allegedly been obtained without authorisation.

Obwoge separately sought production of L.B.'s payslips, contracts, certificates and payroll records directly from Flamingo.

ISSUES

- Whether the Respondent could prevent use of L.B.'s employment data on Data Protection Act grounds.
- Whether comparator information could legitimately be used in an employment discrimination case.
- Whether Obwoge was entitled to compel production of the original records.

HOLDING

Both applications declined. The comparator material was not struck out, but Obwoge's separate application for the original records was also refused; the main claim was directed to proceed, with no order as to costs.

COURT'S REASONING

Following *Bajaber v Planning Systems Limited*, the Court accepted that a discrimination claim requires comparator evidence, and that the Data Protection Act does not prohibit using comparator information where necessary for establishing, exercising or defending a legal claim. Ordinary payroll records were not treated as sensitive personal data in the way biometric or health information would be.

But lawful purpose does not eliminate evidentiary procedure: Obwoge could not simply ask the Court to obtain the underlying records for him without using the proper mechanism — a notice to produce.

RATIO DECIDENDI

There is no blanket rule against using another employee's personal data in litigation where it is necessary for establishing, exercising or defending a legal claim — but lawful purpose does not eliminate the ordinary requirement to use the correct evidentiary and discovery mechanism.

SIGNIFICANCE

Employers should not reflexively object to every comparator-data request by invoking the Data Protection Act; the correct response is to assess purpose, relevance, necessity, sensitivity and proportionality — and to insist on the proper procedural mechanism rather than an informal request.

KEY TAKEAWAY

The Data Protection Act is not a trump card against every discrimination claim that needs a comparator. But needing the evidence doesn't let you skip the proper procedure for getting it either.

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CASE DIGEST · KPLR 016

VOLUME I · DIGEST NO. 016 · PART III: ACCESS, DISCOVERY, THIRD-PARTY DISCLOSURE & REGULATORY PROCEDURE

PREMIER CREDIT LIMITED v M.K.

[2025] KEHC 9254 (KLR) · Civil Appeal E045 of 2024
High Court of Kenya at Nairobi (Milimani Law Courts) · Hon. A. N. Ongeru J. · 30 June 2025
On appeal from an ODPC determination dated 15 December 2023

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi — Civil Appeal
OUTCOME	Appeal allowed; ODPC determination, enforcement notice and compensation award quashed
COMPENSATION	KES 700,000 award set aside
CORE QUESTION	Whether an ODPC determination may stand where mandatory procedural safeguards were not observed

PRINCIPAL DOCTRINE

An ODPC determination and enforcement notice may be invalid where the Commissioner fails to observe mandatory procedural safeguards, including fair hearing, statutory response periods and proper investigation.

BRIEF FACTS

The ODPC found Premier Credit Limited liable for sending M.K. incessant promotional messages about its loan products despite his disinterest, and awarded him KES 700,000 in compensation together with a cessation order. Premier Credit maintained the numbers used belonged to independent sales agents whose contracts had since been terminated.

On appeal, Premier Credit's central complaint was procedural: it had not received a proper notice to show cause, its statutory 21-day response period had been reduced to 14 days, and the enforcement notice was issued at the same time as the determination itself — with no investigation report and no opportunity for the implicated agents to be heard.

ISSUES

- Whether Premier Credit breached Article 31(c) and (d) and section 25 of the Data Protection Act.
- Whether the KES 700,000 compensation award was excessive.

HOLDING

Appeal allowed. The Court quashed the ODPC's enforcement notice and determination and set aside the compensation award, without needing to resolve the underlying substantive processing questions.

COURT'S REASONING

The Court disposed of the appeal purely on procedural fairness: Premier Credit was not served with formal charges, was denied its statutory response period, faced an enforcement notice issued simultaneously with the determination, and was never given a meaningful opportunity to challenge the findings before sanctions were imposed. These defects were fatal regardless of the merits.

RATIO DECIDENDI

The ODPC's substantive jurisdiction does not dispense with procedural fairness. Where the enabling legislation prescribes procedural safeguards, those safeguards must be followed, and their breach can invalidate a regulatory determination without the Court needing to decide the underlying liability question.

SIGNIFICANCE

A controller should distinguish between 'the ODPC got the law wrong' and 'the ODPC failed to follow the legally prescribed process' — the latter can succeed on procedure alone, so preserving every notice, response period and investigation report matters as much as the substantive defence.

KEY TAKEAWAY

Even a company that may well be liable can win on appeal if the regulator cut corners on process. Fair procedure isn't a technicality — it's a precondition for a valid determination.

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CASE DIGEST · KPLR 017

VOLUME I · DIGEST NO. 017 · PART III: ACCESS, DISCOVERY, THIRD-PARTY DISCLOSURE &
REGULATORY PROCEDURE

A.M. v AGENCE FRANÇAISE DE DÉVELOPPEMENT

[2025] KEELRC 3664 (KLR) · Petition E120 of 2025
Employment and Labour Relations Court at Nairobi · Hon. B. Ongaya J. · 17 December 2025

THE CASE AT A GLANCE

FORUM	Employment and Labour Relations Court at Nairobi
OUTCOME	Preliminary objection dismissed; petition to proceed on the merits
COMPENSATION	Not applicable — ruling on preliminary objection only
CORE QUESTION	Whether a data-protection complaint embedded in an employment dispute deprives the ELRC of jurisdiction

PRINCIPAL DOCTRINE

A data-protection complaint embedded in an employment dispute does not automatically deprive the Employment and Labour Relations Court of jurisdiction; the court must examine the substance of the pleaded constitutional and employment dispute.

BRIEF FACTS

A.M. petitioned the ELRC alleging workplace discrimination, harassment, disciplinary abuses, unlawful termination, and privacy violations against her employer — including an allegation that being required to attend a doctor selected by her employer implicated her privacy rights under Article 31 and the Data Protection Act.

The employer raised a preliminary objection: the dispute should have proceeded as an ordinary employment claim, the constitutional framing was an abuse of process, and the data-protection allegations should first have gone to the ODPC.

ISSUES

1. Whether the petition was defeated by the doctrine of constitutional avoidance.
2. Whether the petition amounted to an abuse of process.
3. Whether the data-protection claims were required to be brought first before the ODPC.
4. Whether the ELRC had jurisdiction over the pleaded dispute.

HOLDING

Preliminary objection dismissed. The Court held the pleadings disclosed constitutional issues requiring determination, and were not defeated at the threshold by constitutional avoidance.

COURT'S REASONING

Where a dispute can be completely resolved through ordinary employment law, a litigant should ordinarily use that statutory mechanism — but A.M.'s pleadings required consideration of constitutional provisions the ordinary mechanism would not reach. The Court acknowledged the ODPC's statutory complaint mechanism exists, but tied its ruling to the nature of the dispute as actually pleaded, rather than treating every Data Protection Act issue as automatically outside the ELRC's reach.

RATIO DECIDENDI

Where an employment dispute genuinely requires determination of constitutional rights, the existence of statutory employment and data-protection mechanisms does not automatically prevent the ELRC from exercising its constitutional jurisdiction.

SIGNIFICANCE

Employers should not treat a workplace privacy complaint as merely an internal HR matter — it may coexist with employment rights, constitutional privacy, fair administrative action and discrimination claims, and a data-protection element does not automatically route the whole dispute to the ODPC alone.

KEY TAKEAWAY

Wrapping a privacy complaint inside an employment claim doesn't strip the employment court of jurisdiction. Where genuine constitutional issues are pleaded, they get heard.

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CASE DIGEST · KPLR 018

VOLUME I · DIGEST NO. 018 · PART III: ACCESS, DISCOVERY, THIRD-PARTY DISCLOSURE & REGULATORY PROCEDURE

G. & 4 OTHERS v AMBROSE NDUNGU WAIGWA

[2022] KEHC 12253 (KLR) · Civil Suit E135 of 2022

High Court of Kenya at Nairobi (Milimani Law Courts) · Hon. J. K. Serгон J. · 5 August 2022

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi
OUTCOME	Interlocutory injunction granted; publication restrained pending trial
COMPENSATION	Not applicable — interlocutory relief only
CORE QUESTION	Whether the court may grant an interlocutory injunction restraining continued online publication of allegations arising from information obtained through a former employment relationship

PRINCIPAL DOCTRINE

Where personal or confidential information is being disseminated online in circumstances giving rise to a prima facie infringement of protected interests, the Court may grant targeted interlocutory injunctive relief to prevent continuing dissemination pending trial. This is principally an interlocutory privacy/confidential-information and defamation authority, rather than an authority establishing a broad lawful-basis exception to consent.

BRIEF FACTS

G. and four fellow advocates at Wamae & Allen Advocates sought an injunction against a former employee of the firm, who — after the Plaintiffs lodged an ODPC complaint against him alleging a breach of confidential information — published a series of tweets to his more than 16,000 followers, including allegations of sexual harassment the Plaintiffs said were directed at them and their firm.

The Plaintiffs said the publications were being widely retweeted, that clients had begun inquiring about the allegations, and that continued publication threatened their professional reputation and caused reputational damage and mental anguish. The Defendant did not file a replying affidavit.

ISSUES

1. Whether the Plaintiffs had established a prima facie case.
2. Whether an interlocutory, and specifically a mandatory, injunction could issue at this stage.
3. How Article 33 freedom of expression was to be balanced against the Plaintiffs' reputation and rights.

HOLDING

Application allowed. The Court restrained further publication referring to the Plaintiffs and their firm, including the impugned tweets, and directed removal of the specified publications from the relevant online platforms and search results pending determination of the suit.

COURT'S REASONING

The Defendant had not controverted the factual allegations in the supporting affidavit, and the tweets appeared to suggest professional misconduct on the Plaintiffs' part — establishing a prima facie case with a probability of

success. The Court rejected the argument that a mandatory injunction could never issue at an interlocutory stage: where words complained of are plainly defamatory and remain uncontroverted, such relief may issue.

RATIO DECIDENDI

Where personal or confidential information is being disseminated online in circumstances giving rise to a prima facie infringement of protected interests, the Court may grant targeted interlocutory injunctive relief to prevent continuing dissemination pending trial.

SIGNIFICANCE

A lawful disclosure to a regulator — here, an ODPC complaint — does not automatically authorise public dissemination of the same allegations. Information lawfully retained, lawfully disclosed to a regulator, and lawfully used in proceedings are each distinct from information that may lawfully be published.

KEY TAKEAWAY

Filing a regulatory complaint against someone doesn't give them, or you, a licence to take the fight to social media. What's fair to tell a regulator and what's fair to publish to the world are two different questions.

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CASE DIGEST · KPLR 019

VOLUME I · DIGEST NO. 019 · PART IV: LAWFUL BASIS, STATUTORY MANDATE & LAW-ENFORCEMENT PROCESS

S.S. v PRIME BANK LIMITED

[2025] KEHC 2579 (KLR) · Civil Appeal E001 of 2024
High Court of Kenya at Kisumu · Hon. A. B. Mwamuye J. · 4 February 2025

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Kisumu — Civil Appeal
OUTCOME	Appeal dismissed; ODPC's dismissal of the complaint upheld
COMPENSATION	None — complaint dismissed
CORE QUESTION	Whether disclosure of joint banking information to a deceased account-holder's estate executors requires the surviving account-holder's consent

PRINCIPAL DOCTRINE

Disclosure of personal banking information without the data subject's consent may nevertheless be lawful where disclosure is necessary to comply with a legal obligation, including the lawful functions of executors of an estate.

BRIEF FACTS

S.S. complained to the ODPC that Prime Bank Limited had disclosed his private banking information — relating to accounts originally held jointly with his late mother, and later renewed in his sole name — to the executors of his mother's estate, without his consent. The ODPC dismissed the complaint, and S.S. appealed.

The Bank's position was that the executors had produced a Grant of Probate and needed the account information to ascertain the nature and extent of the deceased's estate.

ISSUES

- Whether the Data Commissioner had misunderstood the personal data in issue.
- Whether the disclosure to the estate's executors was lawful.

HOLDING

Appeal dismissed, with costs to Prime Bank. The Commissioner's original decision was left undisturbed.

COURT'S REASONING

The accounts had initially been jointly held, and the executors were legally required to ascertain the nature and extent of the estate. The Court applied section 30(1)(b)(ii) of the Data Protection Act — lawful processing without consent where necessary for compliance with a legal obligation to which the controller is subject — and found the Bank's disclosure was connected to that lawful process, distinguishing the original collection stage from the later disclosure made under this statutory basis.

RATIO DECIDENDI

Consent is not the only lawful basis for processing. Where a controller has a legally recognised obligation to disclose information and the statutory requirements for that disclosure are satisfied, the absence of the data subject's consent does not necessarily make the disclosure unlawful.

SIGNIFICANCE

Financial institutions should assess a request from an executor against the probate/succession authority actually presented, rather than treating it as an ordinary third-party request requiring the account-holder's consent.

KEY TAKEAWAY

Not every disclosure needs your yes. Where the law itself obliges a bank to hand information to a properly authorised executor, that obligation — not your consent — is the lawful basis.

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CASE DIGEST · KPLR 020

VOLUME I · DIGEST NO. 020 · PART IV: LAWFUL BASIS, STATUTORY MANDATE & LAW-
ENFORCEMENT PROCESS

MWIHAKI v NATIONAL COUNCIL FOR LAW REPORTING

[2022] KEHC 15471 (KLR) · Petition E394 of 2020

High Court of Kenya at Nairobi, Constitutional and Human Rights Division · Hon. Hedwig Imbosa Ong'udi J. · 18
November 2022

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi — Constitutional Petition
OUTCOME	Petition dismissed
COMPENSATION	None — removal and anonymisation also refused
CORE QUESTION	Whether Kenya Law's statutory mandate to publish court decisions displaces the ordinary requirement of consent

PRINCIPAL DOCTRINE

Independent statutory mandate as a lawful basis for processing and publication: the Data Protection Act does not transform every processing activity involving personal information into consent-based processing where another law gives the controller an independent statutory mandate to perform the processing.

BRIEF FACTS

Charity Mwihaki, whose employment had ended in an unfair-termination dispute that led to criminal proceedings against her former employer's officers, found that the resulting judicial-review judgment — in which she was not a party — appeared prominently when prospective employers searched her name online.

She sought removal of the judgment from the Kenya Law website, or alternatively anonymisation to prevent her identification, arguing she had never consented to publication and that Kenya Law had not conducted a data protection impact assessment despite the risk to her employment prospects.

ISSUES

1. Whether publication of the judgment required Mwihaki's consent.
2. Whether continued publication violated Article 31.
3. Whether Kenya Law possessed an independent statutory mandate to publish judicial decisions that displaced the ordinary consent requirement.

HOLDING

Petition dismissed. The Court declined to order removal or anonymisation, holding that publication pursuant to Kenya Law's statutory law-reporting function is not automatically consent-dependent.

COURT'S REASONING

Kenya Law's statutory mission is to provide universal access to public legal information and report the development of jurisprudence; judicial decisions constitute public legal information, and the reporting function does not depend on obtaining consent from every person named in a judgment.

RATIO DECIDENDI

The Data Protection Act does not transform every processing activity into consent-based processing where another law gives the controller an independent statutory mandate. The first question is not 'did the individual consent?' but 'what is the legal authority for the processing?'

SIGNIFICANCE

A major authority for public bodies: where a statute imposes a public function, the controller should identify the enabling provision, define the statutory purpose, and only then determine which Data Protection Act safeguards — minimisation, retention limits, access controls — apply, rather than defaulting to a consent analysis that does not fit the processing.

KEY TAKEAWAY

Being named in a published judgment you didn't ask to be part of is painful, but a law reporter publishing court decisions under its own statutory mandate isn't processing your data unlawfully just because you never said yes.

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CASE DIGEST · KPLR 021

VOLUME I · DIGEST NO. 021 · PART IV: LAWFUL BASIS, STATUTORY MANDATE & LAW-ENFORCEMENT PROCESS

CHERUIYOT v ETHICS & ANTI-CORRUPTION COMMISSION; MAKHANU (Interested Party)

[2023] KEHC 3918 (KLR) · Anti-Corruption and Economic Crime Petition No. 3 of 2022
High Court of Kenya at Nairobi (Milimani Law Courts) · Hon. E. N. Maina J. · 4 May 2023

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi — Anti-Corruption and Economic Crime Division
OUTCOME	Petition dismissed, with costs
COMPENSATION	None — declaratory relief refused
CORE QUESTION	Whether covert audio and video recording made during a bribery investigation requires the suspect's consent

PRINCIPAL DOCTRINE

Law-enforcement processing may constitute an independent lawful basis for indirect collection of personal data: the Data Protection Act does not require the consent of a suspect before personal data is indirectly collected where the statutory law-enforcement exception applies.

BRIEF FACTS

While under investigation by the EACC for allegedly soliciting a bribe, Evans K. Cheruiyot was recorded, by audio and video, during interactions with the Interested Party at a hotel over several months, as part of a covert operation. He challenged the recordings as made without his consent, without prior judicial authorisation, and through what he characterised as unlawful entrapment.

ISSUES

- Whether covert collection of Cheruiyot's personal data required his consent.
- Whether indirect collection of personal data was permissible in the circumstances.
- Whether the criminal-investigation context supplied a lawful statutory basis.
- Whether the recordings were unconstitutional merely because obtained without consent.

HOLDING

Petition dismissed, with costs. The Court held that the Data Protection Act permits indirect collection falling within the statutory law-enforcement exception, and left the question of the recordings' admissibility at any future criminal trial to be determined by the trial court if and when charges were brought.

COURT'S REASONING

Section 28(2)(f) of the Data Protection Act permits indirect collection where necessary for the prevention, detection, investigation, prosecution or punishment of crime; the complainant's participation in the operation could itself constitute the source from which the information was obtained. The Court was careful to note this did not establish that all covert surveillance is automatically lawful, nor finally determine admissibility at trial.

RATIO DECIDENDI

The Data Protection Act does not require the consent of a suspect before personal data is indirectly collected where the statutory law-enforcement exception applies — an important qualification to the general proposition that consent is the default lawful basis.

SIGNIFICANCE

Law-enforcement controllers should document the statutory investigative mandate, the offence under investigation, the necessity of the specific collection method, and the safeguards governing the material — a bare assertion that 'this is an investigation' does not substitute for a documented statutory basis and necessity analysis.

KEY TAKEAWAY

You don't get to consent to your own corruption investigation. Where Parliament has built a law-enforcement exception into the Act, covert evidence-gathering within that exception doesn't need the suspect's sign-off.

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CASE DIGEST · KPLR 022

VOLUME I · DIGEST NO. 022 · PART IV: LAWFUL BASIS, STATUTORY MANDATE & LAW-
ENFORCEMENT PROCESS

OKIYA OMTATAH OKOITI v ATTORNEY GENERAL & ANOTHER

[2020] KEHC 7848 (KLR)
High Court of Kenya · 20 February 2020

THE CASE AT A GLANCE

FORUM	High Court of Kenya — Constitutional Petition
OUTCOME	Petition dismissed; challenged provisions upheld
COMPENSATION	Not applicable — constitutional petition
CORE QUESTION	Whether the Kenya Revenue Authority's statutory information-gathering powers unjustifiably infringe Article 31 privacy

PRINCIPAL DOCTRINE

Statutory powers to obtain information may constitute lawful interference with privacy where exercised within a sufficiently defined legal framework and for a legitimate public purpose.

BRIEF FACTS

Okiya Omtatah Okiiti challenged provisions of the Tax Procedures Act — principally section 59 — conferring powers on the Kenya Revenue Authority to obtain information relevant to tax assessment, audit and investigation, arguing the powers were overly broad and could expose private information without adequate safeguards.

The Respondents maintained the powers were necessary for KRA's statutory functions, that privacy is not an absolute right, and that KRA remained bound by statutory confidentiality obligations over any information obtained.

ISSUES

1. Whether the statutory information-gathering powers infringed Article 31.
2. Whether the limitation was authorised by law and served a legitimate governmental purpose.
3. Whether the limitation was proportionate.
4. Whether confidentiality safeguards sufficiently constrained the power.

HOLDING

Petition dismissed. The Court upheld the challenged provisions, finding the limitation on privacy justified under Article 24.

COURT'S REASONING

The right to privacy is not absolute and may be limited by law where the Article 24 test is satisfied. Considering the tax information sought and KRA's statutory confidentiality obligations, the Court concluded the powers pursued a legitimate public purpose and the limitation, as framed, was justified.

RATIO DECIDENDI

A statutory authority may lawfully require access to personal information where the power is grounded in law, directed to a legitimate statutory purpose, and accompanied by safeguards against arbitrary use.

SIGNIFICANCE

An important public-sector lawful-basis authority: a government controller should be able to identify the statutory power, the public function it serves, the categories of information it reaches, and the confidentiality and retention safeguards attached to it. This is an authority on legally constrained statutory information-gathering, not an unlimited governmental-data power.

KEY TAKEAWAY

A tax authority's power to demand your information isn't unlimited — but it doesn't need your consent either, so long as it stays inside a defined statutory framework with real confidentiality safeguards.

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CASE DIGEST · KPLR 023

VOLUME I · DIGEST NO. 023 · PART IV: LAWFUL BASIS, STATUTORY MANDATE & LAW-
ENFORCEMENT PROCESS

**REPUBLIC v MUCHERU, CABINET SECRETARY MINISTRY OF ICT & 2
OTHERS; KATIBA INSTITUTE & ANOTHER (Ex Parte)**

[2021] KEHC 122 (KLR) · Judicial Review Application E1138 of 2020
High Court of Kenya at Nairobi · Hon. J. Ngaah J. · 14 October 2021

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi — Judicial Review
OUTCOME	Application allowed; Huduma Card rollout quashed pending a DPIA
COMPENSATION	Not applicable — judicial review
CORE QUESTION	Whether the Government could roll out the Huduma Card without first conducting a Data Protection Impact Assessment

PRINCIPAL DOCTRINE

Statutory authority to process data does not dispense with mandatory pre-processing safeguards: where processing is likely to create high risk, section 31 of the Data Protection Act requires a DPIA before processing, not as an administrative courtesy but as a condition of lawful processing.

BRIEF FACTS

Following the earlier nationwide collection of biometric data under the National Integrated Identity Management System (NIIMS), the Government announced on 18 November 2020 the rollout of Huduma Cards. Katiba Institute and Yash Pal Ghai challenged the rollout as unlawful because no Data Protection Impact Assessment had been conducted, as section 31 of the Data Protection Act required.

The Government argued that most NIIMS data collection predated the Data Protection Act (in force from 25 November 2019), that section 31 should not apply retrospectively, and that the applicants had alternative remedies they had not exhausted.

ISSUES

1. Whether the Data Protection Act applied to the NIIMS data.
2. Whether the DPIA requirement in section 31 applied to the Huduma Card rollout.
3. Whether processing could lawfully proceed without a DPIA.
4. Whether judicial review could be entertained despite the statutory complaint route.

HOLDING

Application allowed. The Court issued certiorari quashing the 18 November 2020 decision to roll out Huduma Cards, and mandamus compelling the respondents to conduct a DPIA before any further processing or rollout.

COURT'S REASONING

The existence of statutory authority to collect or process personal data does not eliminate the mandatory safeguards the Data Protection Act imposes. Where processing is likely to create high risk, section 31 requires a DPIA before that processing begins — the Court treated the DPIA as a condition governing lawful processing, not a discretionary courtesy.

RATIO DECIDENDI

The existence of statutory authority to collect or process personal data does not eliminate mandatory safeguards imposed by the Data Protection Act; where high-risk processing is contemplated, a DPLA is a precondition, not an afterthought.

SIGNIFICANCE

A foundational authority for government and large-scale controllers: the lawful-basis assessment has two distinct stages — first, what law authorises the processing; second, what conditions must be satisfied before that power may lawfully be exercised. A public authority that answers the first question but ignores the second is not necessarily compliant.

KEY TAKEAWAY

Having the legal power to build a national database is only step one. Before you actually process the data at scale, the law requires you to assess the risk first — not explain it afterward.

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CASE DIGEST · KPLR 024

VOLUME I · DIGEST NO. 024 · PART IV: LAWFUL BASIS, STATUTORY MANDATE & LAW-
ENFORCEMENT PROCESS

LAW SOCIETY OF KENYA v COMMUNICATIONS AUTHORITY OF KENYA & 10 OTHERS

[2023] KESC 27 (KLR) · Petition No. 8 of 2020
Supreme Court of Kenya · 21 April 2023

THE CASE AT A GLANCE

FORUM	Supreme Court of Kenya
OUTCOME	Determination on the propriety of the appeal under Article 163(4)(a), rather than a fresh merits ruling on every underlying privacy issue
COMPENSATION	Not applicable — constitutional appeal
CORE QUESTION	Whether a regulator's statutory mandate to manage mobile devices itself supplies a lawful basis for a system that could affect millions of subscribers' privacy

PRINCIPAL DOCTRINE

A regulatory mandate to establish a communications/ device-management system remains constrained by constitutional privacy and lawful regulatory process — a statutory mandate does not, by itself, make every technical implementation of that mandate lawful.

BRIEF FACTS

The Communications Authority sought to establish a Device Management System linked to mobile networks, contemplating access to IMEI, IMSI, MSISDN and related subscriber information, aimed at addressing stolen, counterfeit and illegal devices. The Law Society of Kenya challenged the system on constitutional grounds, arguing it would interfere with the privacy of millions of mobile subscribers without adequate attention to privacy, public participation, and safeguards.

The matter reached the Supreme Court on the question of whether the appeal was properly before it under Article 163(4)(a) — a jurisdictional question distinct from a full merits determination of the underlying privacy dispute.

ISSUES

1. Whether the appeal properly raised a matter of constitutional interpretation or application under Article 163(4)(a).
2. Whether a statutory regulatory mandate could itself validate the Device Management System's privacy implications.

HOLDING

The Supreme Court addressed the jurisdictional question of whether the matter was properly before it as a constitutional appeal, given that the litigation concerned constitutional interpretation and application arising from a proposed system capable of affecting millions of subscribers.

COURT'S REASONING

The case required distinguishing three separate questions: the existence of a statutory mandate, the constitutional compatibility of exercising that mandate in a particular technical form, and the procedural route by which a constitutional challenge to that exercise reaches the Supreme Court.

RATIO DECIDENDI

A regulator cannot reason that a statutory mandate makes every technical implementation of that mandate automatically lawful; the implementation must remain within the enabling legislation, constitutional privacy protections, and applicable procedural safeguards.

SIGNIFICANCE

A Supreme Court authority on State telecommunications-data processing and constitutional regulatory oversight: regulators proposing large-scale technical systems touching subscriber data should not treat their enabling statute as pre-clearing the system's privacy design.

KEY TAKEAWAY

A regulator having the power to act doesn't mean every way it chooses to act is automatically lawful. The mandate is the starting point for the privacy analysis, not the end of it.

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CASE DIGEST · KPLR 025

VOLUME I · DIGEST NO. 025 · PART IV: LAWFUL BASIS, STATUTORY MANDATE & LAW-ENFORCEMENT PROCESS

K.O. v H.M.

[2023] KEHC 18290 (KLR) · Petition E153 of 2022
High Court of Kenya at Nairobi · Hon. H. I. Ong'udi J. · 31 May 2023

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi — Constitutional Petition
OUTCOME	Petition allowed in part; CCTV camera ordered removed
COMPENSATION	None — damages declined for want of proof of actual injury
CORE QUESTION	Whether a legitimate home-security purpose authorises CCTV surveillance capable of capturing a neighbour's private property

PRINCIPAL DOCTRINE

A legitimate security purpose does not authorise unlimited surveillance of neighbouring property.

BRIEF FACTS

K.O. and H.M. were neighbours in adjoining units of the same residential complex. H.M. installed CCTV cameras following a security incident involving break-ins, stating they were for her family's security. K.O. alleged the cameras captured his home and family, violating his Article 31 privacy; the parties disputed the cameras' field of view and whether he had been notified.

A joint technical inspection found the camera had a fixed 45-degree lens, was remotely viewable by anyone with internet access and the password, was at the time of inspection displaying H.M.'s own property, but could manually be repositioned with an Allen key to capture K.O.'s property instead.

ISSUES

- Whether K.O.'s Article 31 privacy right was violated.
- Whether the CCTV footage constituted processing of personal data.
- Whether H.M. had a legitimate security purpose, and whether consent was required or established.
- Whether the surveillance, as configured, was justified and proportionate.

HOLDING

The Court found K.O.'s privacy right had been violated, and ordered removal of the CCTV camera and prohibited further surveillance directed at his property. Damages were declined because he had not established actual injury from any captured footage.

COURT'S REASONING

The Court accepted that H.M. had a legitimate reason to install CCTV for her own security, but held that a legitimate purpose does not automatically authorise a configuration capable of capturing a neighbour's private space. As a data controller, H.M. was required to comply with the Data Protection Act, and the absence of demonstrated express consent from K.O. was significant.

RATIO DECIDENDI

A legitimate security purpose does not authorise unlimited surveillance of neighbouring property; a data controller operating CCTV must configure it to the least intrusive extent reasonably capable of achieving the security objective.

SIGNIFICANCE

Directly relevant to any residential or commercial CCTV deployment: operators should document purpose, necessity, field-of-view, minimisation, notice, access controls and retention — and configure cameras so that a neighbour's or passer-by's private space is masked or excluded, not merely technically avoidable.

KEY TAKEAWAY

Installing a camera for your own security doesn't give you a free pass to also watch your neighbour. If the lens can be turned toward their property, the law expects you to have made sure it can't.

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CASE DIGEST · KPLR 026

VOLUME I · DIGEST NO. 026 · PART IV: LAWFUL BASIS, STATUTORY MANDATE & LAW-
ENFORCEMENT PROCESS

**KATIBA INSTITUTE v COMMUNICATIONS AUTHORITY OF KENYA & 2
OTHERS**

[2025] KEHC 10568 (KLR) · Petition E647 of 2024
High Court of Kenya at Nairobi · Hon. E. C. Mwita J. · 18 July 2025

THE CASE AT A GLANCE

FORUM	High Court of Kenya at Nairobi — Constitutional Petition
OUTCOME	Petition allowed; mandatory IMEI-disclosure notices quashed
COMPENSATION	Not applicable — constitutional petition
CORE QUESTION	Whether a legitimate tax and regulatory purpose is sufficient, on its own, to justify mandatory disclosure of device identifiers without a defined processing framework

PRINCIPAL DOCTRINE

A legitimate regulatory purpose does not itself create a lawful processing architecture: a lawful initial purpose does not cure an undefined or inadequately regulated downstream processing framework.

BRIEF FACTS

The Communications Authority issued public notices requiring device assemblers, importers, manufacturers, retailers, wholesalers, mobile-network operators and incoming passengers to provide IMEI numbers, while the Kenya Revenue Authority separately required the same information for tax compliance and to combat non-compliant devices.

Katiba Institute challenged the notices, arguing that IMEI numbers, once connected with subscriber information, could reveal identity, location, communications and device activity, and that the State had not established adequate rules governing collection, storage, access, sharing, retention or subsequent use of that data.

ISSUES

- Whether IMEI numbers constituted personal data once associated with an identifiable individual.
- Whether the mandatory disclosure requirement violated Article 31.
- Whether the State had demonstrated a lawful, sufficiently governed mechanism for processing the information.
- Whether adequate processing guidelines existed.

HOLDING

Petition allowed. The Court declared the notices unconstitutional, declared the mandatory disclosure requirement contrary to Article 31, issued certiorari quashing the notices, and issued prohibition preventing their implementation.

COURT'S REASONING

An IMEI can constitute personal data once associated with an identifiable person — it is capable of becoming connected with telephone information, location, communications and other identifying details. The respondents had not demonstrated a lawful mechanism sufficiently governing the processing of that information once it

became personal data; the absence of adequate guidelines was a material defect that, combined with the mandatory nature of the disclosure, rendered the notices unconstitutional.

RATIO DECIDENDI

A lawful initial purpose does not cure an undefined or inadequately regulated downstream processing architecture. The State must be able to answer why data is collected, on what legal basis, what happens to it after collection, who can access it, whether it can be combined with other databases, how long it is retained, and whether it can be used for another purpose.

SIGNIFICANCE

Likely to become a mandatory reference authority for public-sector DPIAs and statutory-basis assessments: a government data project should maintain a documented purpose-and-authority matrix addressing collection, classification, purpose, necessity, access, sharing, combination, retention, secondary use, security, transparency and oversight at every processing stage.

KEY TAKEAWAY

A good reason to collect data at the start doesn't excuse a vague plan for what happens to it after. If the government can't answer who gets access, how long it's kept, and whether it can be combined with other databases, the collection itself can fall.

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